

IN THE HENRIK COUNTY MUNICIPAL COURT
CIVIL DIVISION

Cohen

Plaintiff,

v.

Walters

Defendant.

CASE NO.: 24 CVG 000348

AGREED ENTRY

Defendant(s) hereby acknowledges receipt of the Notice to Vacate served in accordance with federal and/or state law. The Parties hereby agree as follows:

- \$ 9,670.00 by 2/21/24
- \$ 1,000.00 by 3/1/24
- \$ 1,000.00 by 4/1/24
- \$ 1,000.00 by 5/1/24

- Unless otherwise agreed to by the Parties, any money paid shall be made via certified check or money order.
- Defendant agrees to timely pay and be current in all utilities as they come due and payable.
- Defendant acknowledges and agrees that any money received by Plaintiff under this agreement shall be first applied to existing balance as of the date the money was received, regardless of how the money was earmarked/designated/titled, either by Defendant and/or any third party paying on Defendant's behalf.
- Defendant further acknowledges and agrees to strictly comply with the lease agreement, that this Agreed Entry shall act to reinstate all provisions of the lease agreement as if fully re-written herein.
- Defendant understands that if any of the terms or conditions are breached, Plaintiff shall have judgment for restitution, and the right to schedule an immediate set-out.
- Defendant agrees to not object to Plaintiff's judgment and/or file any motion or pleading to stop the setout. Any motion or pleading filed with the Court to stop Plaintiff's right to regain possession of the premises shall be considered frivolous and Plaintiff shall be entitled to recover all costs and attorney's fees associated therewith.
- If the terms and conditions of this agreement are satisfied, then Plaintiff's Complaint shall be dismissed without prejudice, and Plaintiff does not object to Defendant's request to have this case sealed from online access.
- The parties agree that this Entry shall remain enforceable for up to 120 days from the date of execution.

CS-C (0103465)

Attorney for Plaintiff

[Signature]
Agent for Plaintiff

[Signature]
Defendant

[Signature]
JUDGE

[Signature]
MAGISTRATE

[Signature]
Defendant / Attorney for Defendant(s)

FEB - 5 2024

2/5/24